



U.S. Department
of Transportation

Research and
Special Programs
Administration

SEP 22 1995

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 11285
(FIRST REVISION)

EXPIRATION DATE: July 1, 1997

(FOR RENEWAL, SEE 49 CFR SECTION 107.105.)

1. GRANTEE: Akzo Nobel Chemicals Inc., Chicago, IL.
2. PURPOSE AND LIMITATION: This exemption authorizes the transportation in commerce of solutions of an organic peroxide type F in UN31A metal Intermediate Bulk Containers, IBCs, and provides no relief from any regulation other than as specifically stated herein.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR 173.225(e) (5). insofar as an UN31A IBC is not authorized.
5. BASIS: This exemption is based on Akzo's application dated June 21, 1994, submitted in accordance with § 107.103 and the public process thereon and a supplemental letter dated July 18, 1995.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials description/proper shipping name	Hazard Class/Division	ID number	Pack- ing Group
Organic peroxide type F, liquid	5.2	UN3109	II
Organic peroxide type F, Liquid, Temperature Controlled	5.2	UN3119	II

7. PACKAGING AND SAFETY CONTROL MEASURES:
 - a. PACKAGING - Packaging is a UN31A IBC.
 - b. TESTING - Packaging must be tested in accordance with 49 CFR Subpart O of Part 178, at the Packing Group II level for liquids.
 - c. MARKING - Each IBC must be plainly marked on two opposing sides in letters, at least two inches high on a contrasting background, "DOT-E 11285."

d. Pressure relief - Each IBCs must be fitted with an emergency venting device having a diameter of at least 400 mm; and have sufficient venting capacity to prevent rupture in the case of full fire engulfment in accordance with 49 CFR 178.705(c)(2).

e. Transportation of the organic peroxide solutions must be by private and common carriers.

8. SPECIAL PROVISIONS:

a. Persons who receive the packages covered by this exemption may reoffer them for transportation provided no modifications or changes are made to the packages, all terms of this exemption are complied with and a current copy of this exemption is maintained at each facility from which such reoffering occurs.

b. Shippers using the packaging covered by this exemption must comply with all provisions of this exemption, and all other applicable requirements contained in 49 CFR Parts 171-180.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS:

a. A copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.

b. Drivers must be instructed on the hazards of the materials being transported in addition to safeguards and proper procedures to be followed in the event of fire, accident or unusual delay.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by Federal hazardous materials transportation law, 49 U.S.C. Section 5101 et seq.

o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.

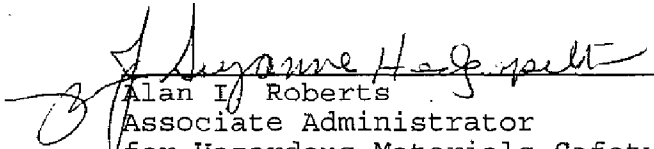
o Registration required by § 107.601 et seq., when applicable.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect unless a regulation has been amended making the exemption no longer necessary.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:

SEP 22 1995


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

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